

United States Court of Appeals
FOR THE DISTRICT OF COLUMBIA CIRCUIT

No. 08-1152

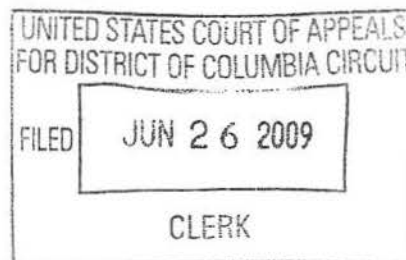
September Term, 2008

FILED ON: JUNE 26, 2009

LANDSTAR EXPRESS AMERICA, INC. AND LANDSTAR GLOBAL LOGISTICS, INC.,
PETITIONERS

v.

FEDERAL MARITIME COMMISSION AND UNITED STATES OF AMERICA,
RESPONDENTS



On Petition for Review of an Order
of the Federal Maritime Commission

Before: GINSBURG, HENDERSON and KAVANAUGH, *Circuit Judges*.

JUDGMENT

This cause came on to be heard on the petition for review of an order of the Federal Maritime Commission and was argued by counsel. On consideration thereof, it is

ORDERED and **ADJUDGED** that the petition for review is granted, the Commission's declaratory order is vacated, and the case is remanded, in accordance with the opinion of the court filed herein this date.

Per Curiam

MANDATE	
Pursuant to the provisions of Fed. R. App. Pro. 41(a)	
ISSUED:	<i>8/18/09</i>
BY:	<i>[Signature]</i>
ATTACHED:	☐ Amending Order ☐ Opinion ☐ Order on Costs

FOR THE COURT:
Mark J. Langer, Clerk

BY: /s/

Michael C. McGrail
Deputy Clerk

Date: June 26, 2009

Opinion for the court filed by Circuit Judge Kavanaugh.